

## 24CV07014 Brian Whitaker vs CookieSB Inc

County: santa-barbara

Division: Civil Law & Motion

Department: 5 SB-Anacapa

Hearing date: 2026-09-21

Motion: CMC; Motion: Strike re Strike Answer

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Tentative Ruling: Brian Whitaker vs CookieSB Inc

Case Number

24CV07014

Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 09/21/2026 - 10:00

Nature of Proceedings

CMC; Motion: Strike re Strike Answer

Tentative Ruling

On December 12, 2024, plaintiff Brian Whitaker filed his complaint against defendant Cookie SB, Inc. (Cookie SB). On August 13, 2025, Cookie SB filed its answer to the complaint; on August 18, 2025, Cookie SB filed its first amended verified answer to the complaint.

On February 10, 2026, then-counsel for Cookie SB filed his motion to be relieved as counsel. In support of that motion, attorney Matthew Olufs filed his declaration stating that defendant's current electronic service address is: "annette.rodriguezrn@gmail.com". (Olufs decl., dated Feb. 10, 2026, ¶ 9.) The motion was granted on April 20, 2026, with a signed order entered on April 22. The signed order shows Cookie SB's last known address as the electronic address above and 918 S. State St., Santa Barbara, CA. On April 28, 2026, proof of service of the signed order was filed. The proof of service shows service by mail at 918 S. State Street, Santa Barbara, CA 93101 and at 233 Hillview Dr., Goleta, CA 93117 (which presumably corresponds to the corporate address of Cookie SB or Cookie SB's agent for service of process).

On June 12, 2026, plaintiff filed this motion to strike the answer of Cookie SB on the grounds that Cookie SB is a corporation and may not appear without counsel. The proof of service shows service of the motion solely by electronic service at: "annette.rodriquez@gmail.com". This email address is different from the email address given as the last known electronic service address of Cookie SB (it is missing "rn" following the name) and therefore is ineffective. At the same time, plaintiff's declaration in support of the motion states that other mail sent to the physical address on State Street was returned as undeliverable. (Price decl., ¶ 6.)

The court notes that service of the motion was not attempted on Cookie SB's agent for service of process as shown in the records of the California Secretary of State. In addition to a corrected electronic service, service should be made to Cookie SB's corporate address (if different from the State Street address), and to the agent for service of process, as shown in the records of the California Secretary of State.

Because of the lack of effective service, the hearing on the motion will be continued to December 14, 2026, at 10:00 a.m. Plaintiff shall serve the motion and its supporting papers, together with notice of this continued hearing date and time, and shall file proof of such service on or before October 12, 2026.

Judges

Judge Colleen Sterne

Dept. 5 SB-Anacapa

1100 Anacapa Street P.O. Box 21107

Santa Barbara, CA 93121-1107

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